

NEW YORK STATE SUPREME COURT
COUNTY OF KINGS

----- X
ARTHUR WHALEY,

Plaintiff,

Index No.:

- against -

CITY OF NEW YORK, and
JOSEPH ALOHAN

SUMMONS

Venue is designated in
Kings County

Defendants.

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED and required to serve upon the attorneys for plaintiff an Answer to the Complaint in this action within 20 days after service of this Summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York). In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of the venue designated is CPLR §§ 503 and 504, as the plaintiff is a resident of Kings County, which is also the county in which the events at issue occurred.

Dated: New York, New York
January 16, 2018

LUMER LAW GROUP
Attorneys for Plaintiff

By:



Michael Lumer, Esq.
225 Broadway, Suite 2700
New York, New York 10007
(212) 566-5060

Defendants' Addresses:

The City of New York
100 Church Street
New York, New York 10007

Sgt. Joseph Alohan, Tax: 936115
c/o Chief of Department
One Police Plaza
New York, New York 10038

NEW YORK STATE SUPREME COURT
COUNTY OF KINGS

----- X
ARTHUR WHALEY,

Plaintiff,

Index No.:

- against -

VERIFIED COMPLAINT

CITY OF NEW YORK, and
JOSEPH ALOHAN

Defendants.

----- X

Plaintiff ARTHUR WHALEY, by his attorneys, the Lumer Law Group, hereby
alleges upon information and belief as follows:

1. At all times hereinafter mentioned, plaintiff ARTHUR WHALEY was an adult male resident of Kings County, in the City and State of New York.
2. At all relevant times hereinafter mentioned, defendant City of New York (the “City”) was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York and acts by and through its agencies, employees and agents, including but not limited to, the New York City Police Department (“NYPD”) and its employees and agents.
3. At all relevant times hereinafter mentioned, defendant JOSEPH ALOHAN, Tax No.: 936115, , was employed by the City as a member of the NYPD. ALOHAN held the rank of Sergeant and is sued herein in his individual capacity.
4. On June 12, 2015, at or about 4:00 am, plaintiff and another male were present in a stationary vehicle on East 19 Street in Brooklyn, New York.

5. At or about that same time, defendant ALOHAN was patrolling nearby in an unmarked NYPD motor vehicle.

6. ALOHAN was alone in his vehicle and was wearing plainclothes.

7. ALOHAN was on duty and performing his duties as an employee of the NYPD without a partner in his vehicle.

8. ALOHAN observed WHALEY and the other male and believed they were in the process of stealing tires and/or wheels from another vehicle on East 19 Street.

9. ALOHAN drove down East 19 Street towards plaintiff.

10. As ALOHAN approached, WHALEY and the other male began to drive away.

11. At no time up to that moment did ALOHAN witness plaintiff or the other male in possession of a weapon.

12. At no time up to that moment did ALOHAN witness plaintiff or the other male engaged or about to engage in what ALOHAN considered, or could have considered, to be an act of violence.

13. ALOHAN accelerated and drove past the driver's side of WHALEY's vehicle and then deliberately turned his vehicle into the side of plaintiff's vehicle in an attempt to deliberately force plaintiff's vehicle to crash into the vehicles parked along the curb.

14. ALOHAN intended to drive past plaintiff, and further intended to use his vehicle to ram into plaintiff's vehicle.

15. ALOHAN's deliberate and planned use of his vehicle as a ramming device is referred to in the NYPD's Patrol Guide 221-01 as a Vehicle Ramming Attack ("VRA"), and is considered by the NYPD to be an "extraordinary event" that is ordinarily prohibited.

16. ALOHAN did, in fact, deliberately ram plaintiff's vehicle into one or more parked vehicles, at which time WHALEY's vehicle's side-curtains deployed and the vehicle came to a stop.

17. ALOHAN exited his vehicle with his handgun drawn and walked behind his and plaintiff's vehicle until he reached the sidewalk while threatening that he would shoot.

18. ALOHAN did not identify himself as a police officer.

19. The other male in the vehicle with WHALEY did not possess a knife, gun, or any other weapon, nor was there any reasonable basis for ALOHAN to believe that he did so possess a weapon of any sort.

20. WHALEY did not, at that time or any other relevant point in time that night, possess a knife, gun, or any other weapon.

21. WHALEY did not, at that time or at point in time that night, claim to, or act as though he possessed a knife, gun, or any other weapon.

22. WHALEY exited his vehicle by climbing through the passenger side front window onto the hood of the adjacent parked car and then dropping onto the sidewalk.

23. The other male in the vehicle with plaintiff remained in the car and made no effort to exit the vehicle.

24. As WHALEY landed on the sidewalk he immediately turned and ran down the sidewalk in the opposite direction from ALOHAN.

25. The NYPD's Patrol Guide makes clear that officers are shall not, among other things, discharge their handgun "in defense of property" or "to subdue a fleeing felon who presents no threat of imminent death or serious physical injury to the MOS or another person present."

26. At no time did WHALEY move towards ALOHAN, brandish a weapon, or otherwise engage in any physical or verbal conduct or behavior that ALOHAN could reasonably have interpreted as menacing or threatening.

27. As plaintiff began to run away, ALOHAN deliberately aimed and fired his handgun at the back of the unarmed, fleeing WHALEY.

28. The shot fired by ALOHAN struck and passed through WHALEY's right forearm.

29. WHALEY continued running and left the scene.

30. WHALEY subsequently sought medical treatment and underwent surgery for the gunshot wound inflicted by ALOHAN.

31. As a direct result of the gunshot, WHALEY suffered permanent and serious injuries, including, but not limited to, right ulnar nerve damage.

32. WHALEY surrendered shortly thereafter.

33. At no time on the night of the incident was there any reasonable basis for ALOHAN to employ a VRA.

34. At no time on the night of the incident was there any reasonable basis for ALOHAN to use deadly force or discharge his weapon.

35. ALOHAN made a number of false statements to members of the NYPD and the Kings County District Attorney ("KCDA"), such falsely, that he had identified himself to WHALEY as a police officer, that WHALEY then brandished a knife, that WHALEY then charged at ALOHAN with the knife in hand, and that ALOHAN shot WHALEY in self-defense after WHALEY threatened him at knife point.

36. ALOHAN's statements were fundamentally untrue and were made solely to cover up and justify his misconduct, including his unreasonable and unnecessary use of deadly force.

37. ALOHAN repeated his false allegation that plaintiff menaced and threatened him with a knife to members of the NYPD and KCDA with the knowledge and understanding that the NYPD would arrest plaintiff based, in part, on ALOHAN's allegations.

38. ALOHAN repeated his false allegation that plaintiff menaced and threatened him with a knife to members of the NYPD and KCDA with the knowledge and understanding that the KCDA would rely on ALOHAN's allegations in deciding to initiate and pursue plaintiff's criminal prosecution for, in relevant part, menacing and threatening ALOHAN.

39. ALOHAN further claimed that, on the night of the shooting, he found the knife he claimed plaintiff had wielded and used to threaten ALOHAN.

40. ALOHAN knew that this knife did not belong to plaintiff and that plaintiff had not possessed this knife on the night of incident, much less used it to threaten or menace ALOHAN.

41. Plaintiff was subsequently arrested and, on or about June 18, 2015, arraigned on various charges concerning WHALEY's alleged menacing of ALOHAN with a knife, the possession of the knife, and theft and auto stripping offenses.

42. ALOHAN testified before the grand jury and was, upon information and belief, the prosecution's only purported eyewitness to WHALEY's alleged possession of a weapon or supposed menacing of ALOHAN.

43. WHALEY was subsequently indicted under Indictment 4681-2015 and prosecuted in Kings County Supreme Court on charges of menacing a police officer (NY PL §120.18), criminal mischief (NY PL §§145.10, 145.05(2)), criminal possession of stolen property (NY PL §165.40), auto stripping (NY PL §165.09(1)), petit larceny (NY PL §155.25), and possession of burglar's tools (NY PL §140.35).

44. At no point in time prior or subsequent to plaintiff's indictment did ALOHAN ever modify or correct his prior statements to the NYPD and KCDA concerning his claim that WHALEY had possessed a knife and menaced ALOHAN with that knife.

45. In fact, ALOHAN continued to maintain throughout the entirety of plaintiff's criminal prosecution his fictitious and falsified story that he fired his gun in response to WHALEY menacing him with a knife, when ALOHAN knew that WHALEY did not

possess a knife and that WHALEY never threatened or menaced ALOHAN in any way, and that ALOHAN's story was a fabrication to coverup his improper discharge of his firearm.

46. At no time, from the date of the incident in June 2015, through the commencement of plaintiff's criminal prosecution in January 2017, did ALOHAN ever correct or modify any of his false factual statements that he had made to the NYPD or the KCDA, or that he made while testifying.

47. The sole basis for the KCDA's prosecution of plaintiff with respect to any allegations that plaintiff possessed a knife or otherwise threatened or menaced ALOHAN or anyone else with a knife or weapon, were the false claims of JOSEPH ALOHAN.

48. There were no other eyewitnesses nor, despite the ample forensic evidence at the scene of the crime, any other evidence that WHALEY possessed the knife or menaced or threatened ALOHAN in any way, other than ALOHAN's claims.

49. On or about February 3, 2017, following a jury trial, WHALEY was acquitted of all charges relating to his alleged menacing of ALOHAN.

50. The jury could not reach a verdict on all of the remaining charges and a mistrial was declared with respect thereto.

FIRST CAUSE OF ACTION

(Violation of Civil Rights Pursuant to 42 USC §1983)

51. Plaintiff ARTHUR WHALEY repeats and realleges each and every allegation set forth in the preceding paragraphs as if more fully set forth at length herein.

52. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of law.

53. All of the aforementioned acts deprived plaintiff WHALEY of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth, Sixth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

54. The acts complained of were carried out by defendant ALOHAN in his capacity as a supervisory police officer with all the actual and/or apparent authority attendant thereto.

55. The acts complained of were carried out by defendant ALOHAN in his capacity as a police officer pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

56. Defendant ALOHAN, while acting under color of state law, maliciously and wantonly engaged in conduct which constituted a custom, usage, practice, procedure or rule of the NYPD and thereby the City of New York, which is forbidden by the Constitution of the United States.

57. The acts complained of deprived plaintiff WHALEY of his right:

- a. not to be deprived of liberty without due process of law;
- b. to be free from excessive force;
- c. to be free from seizure and arrest absent probable cause;

- d. to receive equal protection under the law; and,
- e. to be free from unwarranted and malicious criminal prosecution.

58. By reason thereof, the individual defendant has violated 42 U.S.C. §1983 and caused plaintiff to suffer physical and emotional injuries, mental anguish, loss of liberty, and the loss of his constitutional rights, in an amount in excess of the jurisdictional minimum of this Court, and to be further entitled to punitive damages in a sum to be determined at trial.

SECOND CAUSE OF ACTION

(Excessive Force Pursuant to 42 USC §1983)

59. Plaintiff ARTHUR WHALEY repeats and realleges each and every allegation set forth in the preceding paragraphs as if more fully set forth at length herein.

60. Defendant JOSEPH ALOHAN, deliberately and intentionally employed force that was objectively unreasonable at the time that ALOHAN employed such force, and that there was no reasonable basis for the use of any force, much less the lethal force employed, nor was there any basis by which ALOHAN could reasonably have believed the use of such force was justifiable or necessary.

61. By so doing, defendant ALOHAN maliciously and wantonly subjected the plaintiff to excessive force causing plaintiff serious and permanent injuries, and thereby violated plaintiff's rights under the Fourth Amendment of the United States Constitution.

62. By reason thereof, the individual defendant has violated 42 U.S.C. §1983 and caused plaintiff to suffer physical and emotional injuries, mental anguish, and the loss of his

constitutional rights, in an amount in excess of the jurisdictional minimum of this Court, and to be further entitled to punitive damages in a sum to be determined at trial.

THIRD CAUSE OF ACTION

(Denial of a Fair Trial Pursuant to 42 USC §1983)

63. Plaintiff ARTHUR WHALEY repeats and realleges each and every allegation set forth in the preceding paragraphs as if more fully set forth at length herein.

64. Defendant JOSEPH ALOHAN, deliberately and intentionally fabricated evidence by falsely claiming that plaintiff possessed a knife and by further falsely claiming that plaintiff menaced ALOHAN with the knife, and then communicating such fabricated evidence to the KCDA, or otherwise ensuring that such statements would otherwise be to the KCDA.

65. By so doing, defendant ALOHAN maliciously and wantonly subjected the plaintiff to the denial of his right to a fair trial, causing plaintiff to be wrongly prosecuted on falsified charges and deprived of his liberty in violation of plaintiff's rights under the Fourth, Sixth, and Fourteenth Amendments of the United States Constitution.

66. By reason thereof, defendant ALOHAN has violated 42 U.S.C. §1983 and caused plaintiff to suffer physical and emotional injuries, mental anguish, and the loss of his constitutional rights, in an amount in excess of the jurisdictional minimum of this Court, and to be further entitled to punitive damages in a sum to be determined at trial.

WHEREFORE, the plaintiff demands judgment against defendants jointly and severally as follows:

- i. actual and compensatory damages against each defendant in an amount to be determined at trial;
- ii. punitive damages against each defendant in an amount to be determined at trial;
- iii. statutory attorney's fees pursuant to, *inter alia*, 42 U.S.C. §1988 and New York common law, disbursements, and costs of the action; and,
- iv. such other relief as the Court deems just and proper.

Dated: New York, New York
January 16, 2018

LUMER LAW GROUP
Attorneys for Plaintiff

By: _____



Michael Lumer, Esq.
225 Broadway, Suite 2700
New York, New York 10007
(212) 566-5060

VERIFICATION

Michael Lumer, affirms under penalty of perjury that:

1. I am the attorney for the plaintiff in the within action, am duly admitted to practice law before the Courts of New York State, and make this verification pursuant to CPLR 2106 and further pursuant to CPLR 3020(d)(3).
2. This verification is based on extensive interviews with plaintiff and others with knowledge, and a review of the files and records in my possession.
3. I have read and know the contents of the foregoing Complaint, and verify the same are true based on my knowledge, except as to those matters alleged upon information and belief, and as to those matters, I believe them to be true.
4. The plaintiff does not reside in the same county wherein my office is located and therefore I make this verification on plaintiff's behalf pursuant to CPLR 3020(d)(3).

Dated: New York, New York
January 16, 2018



Michael Lumer